

Court No. - 21

Case :- WRIT - C No. - 30307 of 2014

Petitioner :- Rajesh Kumar

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Triveni Shankar, Ajay Shankar

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Krishna Murari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

We have heard learned counsel for the petitioner and Sri Anil Kumar Pathak holding brief of Sri S.K. Yadav appearing for respondent no. 2. There appears to be some allegation of theft against the petitioner and an F.I.R. has also been lodged against him.

By means of the present writ petition, the petitioner has prayed for deciding his application regarding reconnection and restoration of the electricity connection with a load of LMV-6 in place of LMV-2. In the the aforesaid process the assessment of the electricity charges has also to be done.

Learned counsel for the petitioner has made a statement before us that the petitioner is ready and willing to deposit compounding charges assessed by the department for the alleged theft.

We find that the grievance of the petitioner can be redressed by the competent authority under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005.

In view of the aforesaid statement and the facts and circumstances of the case where the petitioner has prayed for deciding his application, we hereby direct the competent authority respondent no. 2 to decide the application of the petitioner preferably within a period of two months from the date of production of a certified copy of this order before him.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 28.5.2014

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